super-majority in respective parliaments that more liberal governments in the future may not be able to attain. It also does not touch upon the issue of a need to strengthen the legitimacy and accountability of increasingly powerful NGOs.

Finally, the authors do not address the issue of the very real support that populist leaders, right and left, enjoy among the voters. How can one change the mentality of the voters? The usual reply would be through education and media, but these again seem to be compromised in many of the post-Communist societies. And what should the EU do, now that these countries are firmly in the EU? While legal procedures (referral of a Member State to the Court of the EU by the European Commission), political steps (like the Article 7 discussion) and peer reviews (Rule of Law dialogue within the Council) could be helpful in some instances, castigation and bashing will not help; rather, it will further alienate some of what are still the most EU-enthusiastic member states, at a time the EU needs cohesion and outer strength. Tony Barber, FT commentator and harsh critic of the current Polish and Hungarian governments, concedes: 'The EU is guilty of double standards insofar as other countries with deficiencies in the rule of law, including in Western Europe, have never come under the same pressure from Brussels as Hungary and Poland. True, the abuses are more serious in Budapest and Warsaw. But other governments in Central and Eastern Europe dislike what they see as the EU's older member states lecturing the newer ones as if they are children in a classroom. Most were deprived of national freedom in the Soviet era and are more sensitive on matters of sovereignty than many Western Europeans grasp.'[201]

So what is to be done? At the very minimum, the EU should start to be honest about specific problems that exist in post-communist member states, and analyse the state of the Rule of Law much more in detail, taking into consideration also historical obstacles to the full implementation of the essential principles of liberal democracy. This is what many on the centre-right expected when more than ten years ago the Netherlands floated the idea of a rule of law review within the EU, although this was linked to the Dutch opposition to the entry of Bulgaria and Romania into Schengen. In April 2013 the Dutch idea was presented at the Council in Brussels, though it did not initially receive an enthusiastic welcome and the press release only read that 'the Council took note of an initiative by Denmark, Finland,